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LINE 1

24-CIV-06068 JOHN DOE VS. LIOR ZOREA, ESQ, ET AL.

JOHN DOE
LIOR ZOREA

PRO SE
ROBERT M. BLUM

DEFENDANTS LIOR ZOREA'S, GREGORY DESCHENES', AND NIXON PEABODY LLP'S MOTION FOR REASONABLE ATTORNEYS' FEES AND COSTS

TENTATIVE RULING:

For the reasons stated below, defendants Lior Zorea's, Gregory Deschenes', and Nixon Peabody, LLP's (collectively, Defendants) unopposed Motion for Reasonable Attorney's Fees and Costs, filed April 6, 2026, is GRANTED.

Plaintiff has not opposed this motion.

Background

On November 24, 2025, Defendants filed a Special Motion to Strike portions of plaintiff John Doe's Third Amended Complaint ("TAC"), pursuant to Code of Civil Procedure section 425.16 ("anti-SLAPP" motion). On March 26, 2026, this court granted Defendants' anti-SLAPP motion. (March 26, 2026 Order.)

By this Motion, Defendants seek to recover their reasonable attorney's fees of \$7,200.00 and costs in the amount of \$400.25 incurred on their anti-SLAPP motion filed on November 24, 2025.

Application

The unopposed Motion is GRANTED.

Pursuant to Code of Civil Procedure section 425.16, subdivision (c)(1), a defendant who files a successful motion to strike is entitled to a mandatory award of attorney's fees. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) Here, the Defendants all prevailed on their anti-SLAPP motion, filed November 24, 2025. Accordingly, Defendants are entitled to recover their reasonable attorney's fees and costs. Defendants are also entitled to recover their attorney's fees reasonably incurred on their fee motion. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

The motion is timely. (Cal. Rules of Court, rule 3.1702(b)(1).)

The court finds the fees reasonable. Attorney fees are ordinarily determined by the court pursuant to the "lodestar" method. Under the lodestar, a "reasonable" hourly rate is the prevailing rate charged by an attorney of similar skill and experience in the relevant community. (*PLCM Group,*

Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 (*PLCM Group*); *Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132; *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) This court may adjust the lodestar amount based on various factors specific to the case to fix the attorney fees at fair market value for the services provided. (*PLCM Group, supra*, 22 Cal.4th at pp. 1095-1096.) The factors include: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Ketchum, supra*, 24 Cal.4th at p. 1132; *Holguin v. DISH Network LLC* (2014) 229 Cal.App.4th 1310, 1332.) Defendants do not request a lodestar adjustment. In considering the lodestar factors, a trial court must “focus on providing an award of attorney fees reasonably designed to fully compensate [the prevailing party] attorneys for the services provided.” (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 395.)

This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.” (citations omitted)]). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. This court is the single assigned judge.

The court finds Aldo E. Ibarra’s and Connor C. McNamara’s rates reasonable. Ibarra requests \$450.00 per hour and has been an attorney since 2010; McNamara requests \$450.00 per hour and has been an attorney since 2017. Defendants refer to the Laffey Matrix. The court is familiar with the use of the Laffey index which may be used by the trial court. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702.) Under the Laffey Matrix, Ibarra’s hourly rate is as high as \$1,036.00 per hour and McNamara’s rate is as high as \$917.00 per hour. They are only claiming hourly rates of \$450 per hour for this work. Based upon this court’s experience and the Laffey Matrix, the court finds the hourly rate of \$450 for both attorneys reasonable.

The court finds the work performed reasonable. Defendants request compensation for sixteen (16) hours of work. (Ibarra Decl., ¶¶ 4, 9) They state that they may request further fees for reviewing the opposition, drafting a reply, and appearing at the hearing. (*Id.*, ¶ 12.) The billing records have been reviewed to make sure that Defendants are only requesting time spent on the anti-SLAPP motion and not on any of the other motions being brought during the same time period. (*Id.*, ¶ 4, fn. 1.) The court in reviewing the tasks set forth in paragraph 4 of Ibarra’s declaration finds the time spent on each task reasonable and the collective amount of sixteen (16) hours reasonable for an anti-SLAPP motion, which includes appearing at the hearing. Therefore, the court finds that an attorneys’ fee award of \$7,200.00 reasonable under the circumstances.

The Court finds the costs of \$400.25 reasonable and statutorily required to be awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 2

24-CIV-07699

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED VS
LIFT ENRICHMENT, INC.

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED
LIFT ENRICHMENT, INC. LEONARD EMMA
MARYAM MALEKI

PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

CONTINUED FROM 6/9/2026 AND 6/16/2026 AT DEFENDANT'S REQUEST

TENTATIVE RULING:

The court repeats the tentative ruling posted for the June 9, 2026 hearing. Defendant contests the tentative ruling.

Plaintiff Nina Bogdanoff's Motion for Leave to File a Second Amended Complaint is GRANTED.

In this case, on December 6, 2024, plaintiff Bogdanoff filed a wage and hour class action complaint against defendant Lift Enrichment, Inc., which included an overtime claim. On February 10, 2025, plaintiff filed a first amended complaint, which added a Private Attorney General Act (PAGA) claim and deleted the overtime claim because she did not have standing to assert it. On March 20, 2025, defendant answered the first amended complaint. Now, plaintiff seeks to file a second amended complaint to add two individuals, Tyler Fleeman and Nicky Grier-Fairley, as class and PAGA representatives and to add a cause of action for failure to pay overtime. Defendant opposes arguing that the proposed new plaintiffs did not submit their PAGA notices until after the filing of the complaint and thus they cannot claim the benefit of the December 6, 2024 filing date.

The motion was originally scheduled to be heard on May 6, 2026, but the court had question on whether the two new proposed plaintiff could revive a claim that was originally pled in the original complaint but then omitted from the operative pleading. The parties submitted supplemental briefing.

Public policy considerations favor the use of the court's discretion to grant a party's request for leave to amend a pleading, as reflected in California case law. For example, our Supreme Court has stated that "In the matter of amending pleadings, this court has always counseled and sanctioned great liberality. No discussion upon so plain a proposition is necessary." (*Norton v. Bassett* (1910) 158 Cal. 425, 426–27.)

Accordingly, in deciding that the court below had abused its discretion in denying such a request, the Court of Appeal later explained that:
